

North Carolina Reckless Driving Laws

NORTH CAROLINA RECKLESS DRIVING LAWS

N.C.G.S. § 20-140 - Reckless Driving Definition

- Driving carelessly and heedlessly
- Willful or wanton disregard for safety
- Endangering persons or property
- Speed alone may constitute reckless driving
- Officer discretion in charging

Criminal Penalties

- Class 2 misdemeanor offense
- Up to 60 days in jail
- Fines up to \$1,000
- Mandatory court appearance
- Possible license suspension

Aggravating Factors

- Excessive speed (25+ mph over limit)
- Racing or speed competition
- Passing school bus
- Driving while impaired
- Causing accident or injury

Defense Strategies

- Challenge officer's observations
- Question radar/lidar accuracy
- Negotiate to lesser charge
- Present mitigating circumstances
- Character witness testimony